SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER	PAGE 1 OF
	34

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			W912JA27QA0020002	12 NOV 2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	REGINALD ELLIS	3345234349	07 DEC 2026 04:00 PM

9. ISSUED BY	CODE	10. THIS ACQUISITION IS	SET ASIDE:
W7MT USPFO ACTIVITY AL ARNG KO FOR ALARNG DO NOT DELETE, 1740 CONG W L DICKINSON DR MONTGOMERY, AL 36109-2602 UNITED STATES REGINALD ELLIS, EMAIL: REGINALD.J.ELLIS.CIV@ARMY.MIL TELEPHONE: 3345234349	W912JA	☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A)	NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 532412 SIZE STANDARD: USD 40,000,000.00

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING 14. METHOD OF SOLICITATION
☐ SEE SCHEDULE		☐	☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO	CODE	16. ADMINISTERED BY	CODE
SEE SCHEDULE			

17a. CONTRACTOR/ OFFEROR	CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY	CODE
TELEPHONE NUMBER				

17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER	18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM
☐	

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	SEE SCHEDULE *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA	26. TOTAL AWARD AMOUNT *(For Government Use Only)*
SEE SECTION G - CONTRACT ADMINISTRATION DATA	

☐ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☐ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED	☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED

Section A - Solicitation/Contract Form

Instrument Name: Crane and Heavy Forklift Rental Services

Product Service Code : W038

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
0001	Mobile Crane, 30-40 Ton (w/ NCCCO Operator) Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	400	Hours		
0002	Mobile Crane, 50-65 Ton (w/ NCCCO Operator) Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	400	Hours		
0003	Mobile Crane, 75-90 Ton (w /NCCCO Operator) Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	300	Hours		

0004	Mobile Crane, 100-120 Ton (w /NCCCO Operator) Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	200	Hours		
0005	Warehouse Forklift, 5000-6000 lbs. (Solid/Pneumatic) with OSHA Certified Operator Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	500	Hours		
0006	Rough Terrain/Telehandler Forklift, 10,000 - 12,000 lbs. with OSHA Certified Operator Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	500	Hours		

0007	Heavy Industrial Forklift, 15,000 - 25,000 lbs. with OSHA Certified Operator Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	400	Hours		
0008	Heavy Cargo / Container Handler, 30,000 - 50,000 + lbs with OSHA Certified Operator Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	200	Hours		
0009	Mobilization / Demobilization (Round-Trip per Call Order) Flat one-time fee per order covering delivery, DOT overweight/oversize permits, and escort/pilot cars to /from the ALARNG training site. Zone 1: 0 - 35 Miles (Local Metro: Bham, Mont, Mobile, Huntsville) Product Service Code: W038 North American Industry Classification System (NAICS): 532412	50	Each		

	Pricing Arrangement: Firm Fixed Price				
0010	Mobilization / Demobilization (Round-Trip per Call Order) Flat one-time fee per order covering delivery, DOT overweight/oversize permits, and escort/pilot cars to /from the ALARNG training site. Zone 2: 36 - 75 Miles Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	40	Each		
0011	Mobilization / Demobilization (Round-Trip per Call Order) Flat one-time fee per order covering delivery, DOT overweight/oversize permits, and escort/pilot cars to /from the ALARNG training site. Zone 3: 76 - 125 Miles Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	30	Each		
0012	Mobilization / Demobilization (Round-Trip per Call Order) Flat	20	Each		

	one-time fee per order covering delivery, DOT overweight/oversize permits, and escort/pilot cars to /from the ALARNG training site. Zone 4: 126+ Miles (Statewide Extended) Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price				
0013	Standby & Incidental Labor Standby Hourly Rate (On-site idle time due to weather/training delay) Product Service Code: W038 North American Industry Classification System (NAICS): 532412 Pricing Arrangement: Firm Fixed Price	30	Hours		
0014	Standby & Incidental Labor Certified Rigger / Signal Person (Additional labor when required by COR) Product Service Code: W038 North American Industry Classification System (NAICS): 532412	40	Hours		

	Pricing Arrangement: Firm Fixed Price				

Section C - Description/Specifications/Statement of Work

Requirements

Blanket Purchase Agreement (BPA) for statewide, multi-zone mobile hydraulic crane and material handling forklift rental services, fully inclusive of NCCCO-certified crane operators, OSHA-compliant forklift operators, riggers, mobilization, and rigging gear, in direct support of the Alabama Army National Guard (ALARNG) pre-readiness mission training and mobilization exercises.

Section F - Deliveries or Performance

0001	**Quantity** 400 Hours **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0002	**Quantity** 400 Hours **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0003	**Quantity** 300 Hours **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0004	**Quantity** 200 Hours

	Address and POC **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0005	**Quantity** 500 Hours **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0006	**Quantity** 500 Hours **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0007	**Quantity** 400 Hours **Address and POC**

	Period of Performance From 28 Dec 2026 To 27 Dec 2031
0008	**Quantity** 200 Hours **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0009	**Quantity** 50 Each **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0010	**Quantity** 40 Each **Address and POC**

	Period of Performance From 28 Dec 2026 To 27 Dec 2031
0011	**Quantity** 30 Each **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0012	**Quantity** 20 Each **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031
0013	**Quantity** 30 Hours **Address and POC** **Period of Performance** From 28 Dec 2026

	To 27 Dec 2031
0014	**Quantity** 40 Hours **Address and POC** **Period of Performance** From 28 Dec 2026 To 27 Dec 2031

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	2018-12		

DFARS Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.232-7006	Wide Area WorkFlow Payment Instructions.	2023-01		

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at https://www.sam.gov; and

(2) Be registered to use WAWF at https://wawf.eb.mil/ following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at https://wawf.eb.mil/

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

____

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed

price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

INVOICE 2 IN 1

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF	Data to be entered in WAWF
Pay Official DoDAAC	HQ0670
Issue By DoDAAC	W912JA
Admin DoDAAC	W912JA
Inspect By DoDAAC	____
Ship To Code	____
Ship From Code	____
Mark For Code	____
Service Approver (DoDAAC)	DETERMINED AT TIME OF CALL

Service Acceptor (DoDAAC) DETERMINED AT TIME OF AWARD
Accept at Other DoDAAC ____
LPO DoDAAC ____
DCAA Auditor DoDAAC ____
Other DoDAAC(s) ____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

DETERMINED AT TIME OF AWARD

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	2017-01		
52.204-13	System for Award Management-Maintenance. (Deviation 2026-O0038)	2026-02		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038)	2026-02		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)	2026-02		
52.222-41	Service Contract Labor Standards. (Deviation 2026-O0038)	2026-02		
52.222-50	Combating Trafficking in Persons. (Deviation 2026-O0038)	2026-02		
52.222-62	Paid Sick Leave Under Executive Order 13706. (Deviation 2026-O0038)	2026-02		

52.223-23	Sustainable Products. (Deviation 2026-O0038)	2026-02
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	2024-05
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	2018-10
52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	2023-03
52.233-3	Protest after Award. (Deviation 2026-O0038)	2026-02
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)	2026-02
52.240-91	Security Prohibitions and Exclusions. (Deviation 2026-O0038)	2026-02
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-04

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD	2011-09		

	Officials.			
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	2022-12		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2026-O0025)	2024-05	Deviation 2026-O0025	2026-06
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	2023-01		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	2023-01		
252.232-7010	Levies on Contract Payments.	2006-12		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	2023-01		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	2023-11		
252.247-7023	Transportation of Supplies by Sea.	2024-10		

FAR Clauses Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date

52.219-14 Limitations on Subcontracting. (Deviation 2026-O0038) 2026-02

Limitations on Subcontracting (Feb 2026) (Deviation 2026-O0038)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) Definition. Similarly situated entity, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) Applicability. This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) Independent contractors. An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

[Contracting Officer check as appropriate.]

[X] By the end of the base term of the contract and then by the end of each subsequent option period; or

[ ] By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protégé and its mentor approved by the Small Business Administration, the small business protégé shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protégé in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.228-5	Insurance-Work on a Government Installation.	1997-01

Insurance-Work on a Government Installation (Jan 1997)

(a) The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

(b) Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any

material change adversely affecting the Government's interest shall not be effective-

(1) For such period as the laws of the State in which this contract is to be performed prescribe; or

(2) Until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request.

(End of clause)

Section K - Representations, Certification, & Other Statements

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	2022-09		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	2016-10		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	2022-05		

DFARS Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date

252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	2021-05

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) Definitions. "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) Prohibition. Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) Representation. If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it [ ] will [ ] will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) Disclosures. If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

AMENDMENT TO SECTION L - INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS

L.1 Controlling Equipment Classes and Quotation Coverage (Volume I & Volume II)

While pages 5 and 6 of the Performance Work Statement (PWS) describe baseline potential crane and forklift sizes, the contract is structured to cover a broader range of equipment classes in case of operational necessity. **Section B (CLINs 0001 through 0014)** controls the quotation submission requirements. Offerors shall ensure their quotation addresses every Section B equipment class as follows:

1. **Volume I - Fleet Availability Matrix:** Offerors shall submit a comprehensive Fleet Availability Matrix demonstrating access to and availability of all equipment classes listed in Section B (CLINs 0001 through 0008, including the 75-90 Ton and 100-120 Ton Mobile Cranes, and all specified Forklift/Heavy Cargo Handler classes).

2. **Volume I - Operator Credentials and Certifications:** Offerors shall provide valid operator certifications and credentials (e.g., NCCCO certifications for mobile crane operators, OSHA-compliant certifications for forklift/container handlers, and qualified rigger credentials for CLIN 0014) covering all equipment classes listed in Section B.

3. **Volume II - Price Schedule:** Offerors shall submit a completed Section B Price Schedule with unit prices populated for **all fourteen line items (CLINs 0001-0014)**. Failure to price all CLINs may render the quotation non-responsive and ineligible for award.

L.2 Past Performance Submission & Disclosed Subcontractors (Volume I)

Offerors shall submit two (2) to three (3) recent and relevant past performance references performed within the last five (5) years. Offerors may include clearly attributed past performance references for a disclosed equipment and operator subcontractor, subject to the following mandatory conditions:

1. **Division of Responsibilities:** The Technical Volume must explicitly identify the subcontractor and map their specific division of work to the applicable Section B CLINs (e. g., specific crane tonnage classes or heavy forklift operations).

2. **Binding Commitment:** The offeror must submit a signed **Letter of Commitment** or executed **Teaming Agreement** signed by both the prime offeror and the proposed subcontractor confirming the subcontractor's binding commitment to provide the specified equipment and certified operators throughout the BPA performance period.

3. **Post-Award Substitution Restriction:** Any subcontractor whose past performance, fleet assets, or operator credentials are relied upon to establish technical acceptability under this solicitation may not be substituted or replaced after BPA establishment without prior written approval from the Contracting Officer.

L.3 Service Contract Labor Standards (SCLS) & Statewide Wage Determinations (Volume II)
This acquisition is subject to the Service Contract Labor Standards (FAR 52.222-41). Because this Blanket Purchase Agreement (BPA) provides statewide coverage across all counties within the State of Alabama, specific places of performance vary by individual order:

1. **Call-Level Wage Determination Incorporation:** In accordance with FAR 22.1009 and 29 CFR 4.4, the Department of Labor (DOL) Wage Determination applicable to the specific Alabama county in which work is performed will be incorporated into each individual funded BPA Call upon issuance.

2. **Baseline SCA Labor Classifications:** For quotation preparation and statewide rate structuring, offerors shall ensure proposed hourly rates in Section B comply with prevailing wage and fringe benefit requirements across the following applicable DOL SCA Directory of Occupations classifications:

- **CLINs 0001-0004 (Mobile Cranes, 30-120 Ton):** *23440 - Crane Operator*
- **CLINs 0005-0007 (Forklifts & Telehandlers, 5K-25K lbs):** *21020 - Forklift Operator*
- **CLIN 0008 (Heavy Cargo / Container Handler, 30K-50K+ lbs):** *23440 - Heavy Equipment Operator*
- **CLIN 0014 (Certified Rigger):** *23850 - Rigger*
- **CLINs 0009-0012 (Mobilization / Heavy Transport):** *31363 / 31364 - Truckdriver, Heavy / Tractor-Trailer*

L.4 Limitation on Subcontracting (FAR 52.219-14) Compliance Disclosure (Volume I & II)
This solicitation is a 100% Total Small Business Set-Aside under NAICS **532412**, and **FAR 52.219-14 (Limitations on Subcontracting)** is hereby incorporated into the solicitation.

1. **BPA-Level Calculation Basis:** Pursuant to FAR 52.219-14(e)(1) and 13 CFR 125.6 (f), the Contracting Officer has established that compliance with the limitation on subcontracting shall apply and be calculated **cumulatively across all funded BPA Calls issued over the entire BPA performance period**, rather than on an individual call-by-call basis.

2. **Subcontracting Cap:** The small business prime contractor shall not pay more than **50 percent** of the cumulative amount paid by the Government for contract performance to subcontractors that are **not similarly situated entities**. Work performed by a "similarly situated entity" (an eligible small business concern under NAICS 532412) is excluded from the 50% subcontracting cap.

3. **Quotation Representation:** Offerors utilizing subcontractors for any Section B CLINs shall identify in Volume I each subcontractor's small business size status under NAICS 532412 and demonstrate how cumulative tasking will remain compliant with FAR 52.219-14.

*** END OF NARRATIVE 1 ***

FAR Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	2017-01		
52.204-7	System for Award Management-Registration. (Deviation 2026-O0038)	2026-02		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

DFARS Provisions Incorporated by Reference

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	2023-03		

Section M - Evaluation Factors for Award

AMENDMENT TO SECTION M - EVALUATION FACTORS FOR AWARD

M.1 Technical Evaluation - Equipment Class Coverage & Credentials

The Government will evaluate the Offeror's **Fleet Availability Matrix** and **Operator Credentials and Certifications** against the full spectrum of equipment classes specified in **Section B (CLINs 0001 through 0008 and CLIN 0014)**. To be rated technically acceptable, the quotation must demonstrate verified fleet availability and valid operator/rigger credentials covering all Section B equipment classes, including the 75-90 Ton and 100-120 Ton crane classes and all forklift/cargo handler classes, regardless of whether those classes exceed the baseline examples cited in the PWS.

M.2 Past Performance Evaluation - Prime and Disclosed Subcontractors

Past performance will be evaluated to assess the Government's confidence in the Offeror's ability to successfully perform the required effort based on recency, relevance, and quality of prior work:

1. **Consideration of Subcontractor References:** Past performance references submitted for a disclosed equipment and operator subcontractor will be evaluated only if the quotation includes a signed **Letter of Commitment or Teaming Agreement** and clearly maps the subcontractor's responsibilities to specific Section B CLINs. Quotations that rely on subcontractor assets but fail to provide an executed Letter of Commitment will be rated **Technically Unacceptable** and will not be considered for award.

2. **Weighting Criteria:** Subcontractor past performance will be accorded weight in direct proportion to the criticality and percentage of the Section B scope the subcontractor is proposed to perform. While strong subcontractor past performance may positively contribute to the overall confidence assessment for specialized equipment classes, it will not wholly substitute for the prime contractor's demonstrated capability to manage, coordinate, and administer the overall BPA. Unattributed subcontractor references or references lacking a binding Letter of Commitment will not be evaluated.

3. **Validation of Personnel Credentials:** The Government will verify that all submitted operator credentials (NCCCO cards, OSHA forklift certifications, Rigger qualifications) are active, unexpired, and directly correspond to the specialized equipment classes priced in Section B. The technical evaluation team will reject quotations where operator certifications do not match the specific weight classes of the equipment proposed.

4. **Equipment Mobilization & Permitting:** The Government will evaluate the subcontractor's documented ability to obtain requisite heavy-haul permits through the State of Alabama to ensure mobilization timelines can be met.

5. **Safety Verification:** The subcontractor's safety record (OSHA logs/EMR rating) will be evaluated alongside the prime's corporate safety plan. A subcontractor safety record demonstrating severe, unresolved OSHA violations or an EMR greater than 1.0 may result in a technically unacceptable rating for the overall quote.

M.3 Price Evaluation & Service Contract Labor Standards Compliance
The Government will evaluate the total quoted price across **all fourteen line items (CLINs 0001-0014)** in Section B for completeness and price reasonableness. Quoted unit rates must be fully burdened to support statewide performance across Alabama and comply with the Service Contract Labor Standards (FAR 52.222-41) for occupational codes **23440, 21020, 23440, 23850, and 31363 /31364**. Quotations that fail to price all fourteen CLINs will be rejected as non-compliant.

M.4 Limitation on Subcontracting Compliance Evaluation (FAR 52.219-14)
The Government will evaluate the Offeror's proposed teaming and subcontracting structure to verify compliance with **FAR 52.219-14**. Compliance will be assessed and monitored across the **cumulative value of all funded BPA Calls over the BPA performance period**. Quotations that propose a subcontracting structure where more than 50 percent of the anticipated cumulative contract value is performed by non-similarly situated entities (large businesses) will be determined ineligible for award.

*** END OF NARRATIVE 1 ***

FAR Provisions Incorporated by Full Text

Number	Title	Effective Date	Alternate Deviation	Variation Effective Date
52.212-2	Evaluation-Commercial Products and Commercial Services. (Deviation 2026-O0038)	2026-02		

Evaluation-Commercial Products and Commercial Services (Feb 2026) (Deviation 2026-O0038)

(a) Evaluation factors. The Government will award a contract resulting from this solicitation to the responsible Offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors will be used to evaluate offers:

[Insert evaluation factors in the relative order of importance. For requests for proposals, state: Evaluation factors other than price when combined are [significantly more important than price /approximately equal to price/significantly less important] than price. For invitations for bids, list only price and price-related factors.]

Technical

Past Performance

Price

Please see addendum for further evaluation details.

(b) Options (if applicable). The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) Notice of award. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)